

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, MARCH 18, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**IVER CAPITAL CORPORATION vs. LAURA RAYA HERNANDEZ
Case No. CL25-00119**

Motion by Defendant to Quash Service of Summons for Lack of Personal Jurisdiction

TENTATIVE RULING

The Parties are to appear for hearing as scheduled.

**ARIELLE POSADAS vs. DAVID NIETO
Case No. CU23-02564**

ADRIANS' Demurrer and Motion to Strike

TENTATIVE RULING

Defendant ADRIAN NIETO ("ADRIAN") demurs to Plaintiff ARIELLE POSADAS's complaint alleging negligence related to a motor vehicle collision. ADRIAN alternatively moves to strike the complaint's amendment naming him in place of a Doe defendant, on the same grounds upon which he demurs.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace*

Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. A plaintiff who is genuinely ignorant of a defendant’s true name may name that defendant as a Doe in his complaint; later, upon finding out the defendant’s true name, he may amend the complaint to name the Doe and enjoy relation back to the complaint’s filing date for purposes of the statute of limitations. (*McClatchy v. Coblentz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371.) However, this benefit is only available to a plaintiff who was actually ignorant of the facts establishing a cause of action against that Doe at the time of filing; if the plaintiff knew the facts supporting his claim against the Doe, or reasonably should have known, he cannot use the benefit. (*Id.* at pp. 371-372.) The key question is what facts the plaintiff knew and not whether he understood that he had a legal claim based on those facts. (*Id.* at p. 372.)

The face of the complaint does not reveal that Plaintiff actually or constructively knew of her claim against ADRIAN at the time of filing. ADRIAN’s proffered evidence demonstrating her actual or constructive knowledge is not proper on a demurrer, which looks only to the face of the complaint or to matters judicially noticed. The same standard applies to motions to strike. (Code Civ. Proc. § 437, subd. (a).)

Conclusion. ADRIAN’s demurrer is overruled. ADRIAN’s motion to strike is denied.

DARRICK CHAVIS; ET AL. vs. NEWTEK SMALL BUSINESS FINANCE, LLC; ET AL.
Case No. CU24-06888

Motion to Be Relieved as Counsel

TENTATIVE RULING

Plaintiff Counsel’s unopposed motion to be relieved, as to all three Plaintiffs, are GRANTED. The Case Management Conference date of April 21, 2025 at 9:00 a.m. is confirmed. Plaintiffs’ Counsel is to provide notice to Plaintiffs that the April 25, 2025 Case Management Conference date is confirmed and that Plaintiffs are to appear.

AKBAR WARIS BOISSIERE vs. TRI PROPERTY; ET AL.
Case No. FCS057866

Motion to Compel Arbitration

TENTATIVE RULING